



ABSTRACT

Animal Husbandry Department - Framing of "Tamil Nadu State Dog Breeding Policy" – Orders – Issued.

ANIMAL HUSBANDRY, DAIRYING, FISHERIES AND FISHERMEN WELFARE (AH-4) DEPARTMENT

G.O.(Ms.) No.80

Dated: 27.09.2024

ஸ்ரீ குரோதி வருடம், புரட்டாசி 11

திருவள்ளூர் ஆண்டு 2055

Read:

1. Ministry of Commerce and Industry, Department of Commerce, Directorate General of Foreign Trade vide notification No.3/2015-2020.
2. Writ Petition Nos.23230, 23231 of 2016 and W.P.No.10496 of 2017 and WMP No.19923, 19924, 19926 of 2016 and 11386 of 2017 filed by the Petitioners (The Madras Canine Club & The Kennel Club of India).
3. Hon'ble High Court of Madras has delivered its order dated 30.01.2024.
4. From the DAH&VS Roc No.15235/TNAWB/2022, dated 03.09.2024.

ORDER:

Various Writ Petition Nos.23230, 23231 of 2016 and W.P.No.10496 of 2017 and WMP No.19924, 19926 of 2016 and 11386 of 2017 have been filed with a prayer to issue a Writ of Certiorari to call for the records pertaining to the impugned order passed by the Ministry of Commerce and Industry, Department of Commerce, Directorate General of Foreign Trade vide notification No.3/2015-2020 dated 25.04.2016 wherein the said notification has specifically restrained using of imported commercial dogs for breeding.

2. The Hon'ble High Court of Madras in their order dated on 06.06.2023, inter-alia, have impleaded the State Government and directed to formulate "Tamil Nadu Dog Breeding Policy" for regulation of breeding of dogs in the State of Tamil Nadu.

3. In the meantime, the Hon'ble High Court of Madras in their orders dated 25.06.2024 in W.P. Nos.23230 & 23231 of 2016 and 10496 of 2017 W.M.P. Nos.19923 to 19926 of 2016 and 11386 of 2017 have issued suitable instructions to finalize "Dog Breeding Policy" and to upload it in the official website and due publicity shall also to be given to the same.

4. In view of the above, the Director of Animal Husbandry and Veterinary Services was requested to send the Draft "Tamil Nadu State Dog Breeding Policy" to the Government for approval so as to comply the directions of the Hon'ble Court.

5. In this regard as per the orders of the Hon'ble High Court discussions were held with various stakeholders.

6. Based on the discussions, the Director of Animal Husbandry & Veterinary Services has finalized the revised Draft "**Tamil Nadu State Dog Breeding Policy**" and sent the same to Government for approval vide reference fourth read above.

7. The Government after careful examination of the proposal accept the same and approve the "**Tamil Nadu State Dog Breeding Policy 2024**" as annexed to this order.

8. The Director of Animal Husbandry and Veterinary Services is requested to notify the "Tamil Nadu State Dog Breeding Policy 2024" in the Tamil Nadu State Government Gazette (Extraordinary) and to upload the same in the public domain to comply the Hon'ble High Court directions.

(BY ORDER OF THE GOVERNOR)

K.GOPAL

ADDITIONAL CHIEF SECRETARY TO GOVERNMENT

To

The Director of Animal Husbandry and Veterinary Services, Chennai-35.

The Chief Executive Officer,

Tamil Nadu Animal Welfare Board, Chennai - 35.

The Works Manager,

Government Central Press, Chennai - 600 079,

The National Informatics Centre, Secretariat, Chennai - 9.

Tamil Nadu e-Governance Agency, Chennai - 2.

Copy to:-

The Senior Personal Assistant to Hon'ble Minister

for Fisheries - Fishermen Welfare and Animal Husbandry, Chennai-9.

The Personal Assistant to Additional Chief Secretary to Government,

Animal Husbandry, Dairying, Fisheries and Fishermen Welfare

Department, Chennai-9.

The Law Department, Chennai - 9.

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27/9/2024
SECTION OFFICER
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27/9/2024

ANNEXURE

G.O.(Ms).No.80, Animal Husbandry, Dairying, Fisheries and Fishermen Welfare (AH-4) Department, Dated: 27.09.2024

TAMIL NADU DOG BREEDING POLICY 2024

Preamble:

Breeding, marketing and sale of dogs has become a high commercial venture involving thousands of breeders and pet shops making this as a multi-crore business. This has resulted in the mushrooming of unscrupulous breeders and unethical breeders selling puppies that are poor in breed standards, unhealthy and diseased.

This uncontrolled breeding has high zoonotic potential which is a public health concern. Hence, it is the need of the hour to frame dog breeding policy for the State of Tamil Nadu.

The Tamil Nadu dog breeding policy 2024 is drafted based on the Prevention of Cruelty to Animals Act, 1960 (Central Act 59 of 1960).

This dog breeding policy emphasizes on:-

- Ethical breeding
- Avoid indiscriminate breeding
- Avoid inbreeding leading to genetic disorder
- Conserve native germplasm which is of unique Biodiversity values
- Prevent introduction of diseases from foreign countries.
- Registration of premises/establishment
- Licensing of breeders
- Issue of certificate for breeding dogs (sire/dam)
- Monitor the dog breeding agencies

1. Definitions:

- **"Breeder"** means an individual or group of persons who own dogs of specific breeds for breeding and engage in sale of dogs and puppies, and includes boarding kennel operator, intermediate handler and trader.
- **"Trader"** includes an individual or group of persons who sell dogs and

puppies acquired from any breeder or pet shop or from his or their own breeding facility.

- **"Pet shop owners"** are those who sell companion dogs (dogs).
- **"Registration"** refers to registration of the premises / establishment intended for dog breeding purposes
- **"Breeder License"** refers to the authentication of a breeder to maintain and breed dogs
- **"Certificate"** refers to the identification of document of dog meant for breeding purpose

2. Objectives:

- To regulate the welfare of dogs kept in breeding premises / establishments.
- To extend the powers to Tamil Nadu Animal Welfare Board (TNAWB) for the inspection of such premises / establishments.
- To maintain the records kept at such premises/establishments and for connected purposes.
- To regulate the sale of dogs and puppies.

3. Native Breeds of Tamil Nadu:

- The recognized breeds of Tamil Nadu are **Rajapalayam, Kombai, Chippiparai and Kanni**.
- The following dog breeds such as **Kattai, Ramanathapuram mandai dog, Malai patti, Sengottai dog etc**, have to be standardized, recognized and registered to prevent the native dogs from becoming extinct. Government will takes steps to promote breeding of native breeds in centers.

- **Kattakal dog, also known as kattai**, which can be translated into English as "short", is a multi-purpose dog that is a great alert watchdog, a talented small game hunter and also a friendly family companion.
- **Alunku** is the most unusual dog because it is a hairless breed on the verge of extinction, with the last dogs believed to live along the Tamil Nadu-Kerala border. The Alunku is excellently alert and courageous guardian number seven.
- **Ramanathapuram Mandai Dog:** The Mandai Dog is another side hound, but they hunt not only by sight but also have an excellent sense of smell. This is an absolutely versatile breed that was used for hunting, guarding, and herding, and of course, as slave family companion.
- **Malay, also known as the Malai pati** is an extremely rare dog. Its name literally means mountain climber and this dog is very athletic and agile, capable of easily living in mountains. This dog is a versatile worker, used for herding, hunting, and livestock protection.
- **Sengotai dog** is one of the strongest Indian dogs. It is a very strong, alert, and confident dog that absolutely loves its people and is devoted to them, but that is quite suspicious towards strangers, which makes it a guardian breed.
- The dogs native to Tamil Nadu are mostly hounds in nature. They are good runners, suitable for hunting, live in packs. These dogs are not suitable to be raised in restricted spaces, as they require an exercise of several kilometers. Therefore, the dogs will not be recommended to be raised in a house with restricted space.
- Many of the community dogs on the streets which are non-descriptive in nature, show remarkable traits in terms of health, skin coat, good temperament, guarding ability etc, and these dogs will be encouraged to

standardize the dogs as a breed. A committee will be constituted to explore the feasibility of formation of topography based on local breed preservation centres (TBLBPC). Research will be promoted on the physical attributes of these dogs for them to be valued as working dogs or guard dogs. All native dog breeds will be surveyed, characterized and conservation measures must be taken.

4. General conditions for breeder:

- a. Applicants must obtain Pet License from the Local Body and apply for breeder license from the Tamil Nadu Animal Welfare Board (TNAWB).
- b. The breeder is allowed to breed only the breeds mentioned in the application.
- c. All the licensees shall display the license at the premises/establishment for the breeding/sale of dogs.
- d. All licensed pet shops should source/procure puppies/dogs only from licensed breeders with proof of records (health card, copy of breeder license issued by TNAWB).
- e. All the registered premises/establishments shall be inspected by the officers not below the cadre of Animal Welfare Officers of TNAWB and by local body officials as and when required.

5.Registration and Licensing:

- a. Each and every premises/establishment intended for dog breeding purpose shall be registered with TNAWB.
- b. Application must be accompanied with a fee of Rs.5,000/- each for the registration of the premises/establishment and breeder license. Exclusive native dog breeders shall prevail a concession fee of Rs.2,500/- for registration and fee for breeder license shall be waived.
- c. The premises / establishment registration is valid for two years and to be renewed subsequently by paying aforesaid prescribed fees in respect of every establishment being used or intended to be used by him/her for breeding.

- d. An individual (breeder/trader/owner) must have attained eighteen (18) years of age to avail breeder license.
- e. Breeder license shall be issued subject to the production of No Objection Certificate (NOC) from the Local body.(For kennel)
- f. The dogs used for breeding shall be certified every year by a registered veterinarian.
- g. The breeder license will be issued for existing breeders based on:
 - i. Records maintained
 - ii. Status of breeding dogs
 - iii. State of the establishment/premises including facilities / infrastructure available
 - iv. Record of staff employed
 - v. Details of breeding operations/activity
 - vi. General care and upkeep of the dogs
 - vii. Health of the dogs.
- h. Tamil Nadu Animal Welfare Board (TNAWB) official shall enter any such premises / establishment and inspect them, if any dogs found thereon or anything therein, to ascertain whether an offense/violation has been or is being committed with regard to PCA Act 1960 (Central Act 59 of 1960).
- i. Operation of a commercial kennel/pet shop as a commercial breeder, dealer/intermediate handler or exhibitor without a valid registration and breeder license shall attract penal action as per the provisions of dog breeding and marketing rules 2017.
- j. All premises / establishments registered under the Tamil Nadu Animal Welfare Board (TNAWB) shall be inspected at least once a year, or upon a complaint about misuse/abuse of dogs maintained.
- k. A breeder license issued to an individual for a specific registered premises/establishment is not transferable upon change of ownership or any other significant change in business or operations, nor is it valid at a different location.
- l. Breeder license will expire by two years from the date of issuance, and the

licensee shall renew the license within a period of 30 days from the date of expiry failing which a penalty of Rs.500 per day shall be levied.

6. Breeding Requirements:

- a. All breeders must adhere to responsible, ethical breeding practices to ensure the physical and mental well-being of dogs. Shall intimate the genetic defects if any in the offsprings and such of the male should be neutered. If the bitch whelp puppies with similar defect, such dogs shall be spayed.
- b. Breeders should prioritize the health and temperament of the dogs they breed and avoid ill-tempered dogs for breeding purpose.
- c. Karyotyping study shall be done before engaging the dog for breeding. If necessary, Tamil Nadu Animal Welfare Board (TNAWB) will support for Genetic Testing if required.
- d. The breeder shall be knowledgeable about reproduction, nutrition, wellness and care, early behavioral development, and breeding ethics.
- e. Only normal, healthy, matured female and male dogs that have reached their eighteen months of age shall be bred. In addition to this rule, for Toy breeds 15 to 18 months of age may be permitted to bred.
- f. No female dog shall be exploited to produce litters in two consecutive seasons.
- g. Female dogs shall not be used such that they give birth to puppies before the end of the period of twelve months beginning with the day on which they last gave birth to puppies.
- h. Only one litter shall be produced in a year.
- i. Forced mating including and not restrained to stands and other such methods should be strictly avoided.
- j. No female dog shall be exploited to give birth to more than five litters of puppies during her lifespan.

- k. Breeding License will not be issued after the age of 8 years. However in case of male dogs, it may be extended upto 10 -12 years according to the veterinarian Fitness Certificate.
- l. The dogs used for breeding must be regularly vaccinated and proof of vaccination is mandatory. Every breeder shall furnish the proof of age (health card) of their breeding dogs certified by a veterinary practitioner.
- m. Every breeder shall keep a full record of the litter comprising of details of the parent, defects if any.
- n. There shall be no tail docking, ear cropping, de-clawing, branding, dyeing, injecting substances to enhance visual appeal, performing a surgery or procedure to camouflage or hide any defect or infirmity or any other kind of mutilation of any body part of the pup and any change of appearance by artificial means is strictly forbidden.
- o. Dog breeds that are mentioned below which cannot withstand Indian climatic conditions and physical health issues shall be strictly prohibited.
 - ❖ Basset Hound
 - ❖ French Bulldog
 - ❖ Alaskan Malamute
 - ❖ Chow Chow
 - ❖ Keeshond
 - ❖ Newfoundland
 - ❖ Norwegian Elkhound
 - ❖ Tibetan Mastiff
 - ❖ Siberian Husky
 - ❖ Saint Bernard
 - ❖ Pug

7. Common breeding techniques:

- a. **Outcrossing** - A type of outbreeding that involves mating animals within the same breed but with no common ancestors for upto four to six generations.

- b. **Line breeding-** mating between dogs of the same breed that are marginally related to each other and in this case, dogs are chosen for their special attributes to obtain certain types.

The **above two breeding techniques are only permitted.**

- c. **Inbreeding-** Inbreeding is the mating of related individuals who have one or more ancestors in common. The effects of inbreeding accumulate within closed populations (e.g., within purebred breeds) and negative consequences can result from breeding parents who are too genetically similar. Inbred dogs are more likely to have genetic defects and inherited diseases, which can be extremely detrimental to their health and welfare. Hence, **inbreeding technique is not permitted.**
- d. **Breeding to create new breeds of dogs of individual preferences with unusual looks shall be strictly prohibited.**
- e. **Natural crossing is only permitted and artificial insemination will not be entertained.**

8. Health related requirements:

Every dog shall be kept in a clean, healthy and safe environment and be provided with all socialization opportunities, vaccinations, and de-worming necessary to provide maximum mental and physical well-being.

9. Veterinary care

- a. The consultant veterinary practitioner shall visit the establishment periodically, at regular intervals and medical examination of each dog at the establishment shall be conducted at least once every month and a record of the same shall be maintained by the breeder.
- b. Individual health records shall be maintained for all dogs
- c. Litter health records may be kept and health records (or a copy) shall

accompany all dogs upon transfer of ownership.

- d. Adequate training and guidance to personnel involved in the care of dogs, including daily observation of dogs, is required and the breeder shall employ only such persons who can perform these activities. Tamil Nadu Animal Welfare Board (TNAWB) will arrange Training as per the needs under the supervision of the trained/ specialized veterinarian.
- e. If the veterinary practitioner finds any veterinary issues either during the course of a visit to the establishment, or upon his attention being invited to the same by the Tamil Nadu Animal Welfare Board, they should ensure vaccination certificate and all other health records are properly maintained.
- f. A quarantine issued by the veterinary practitioner shall remain in force until revoked as per the guidance of the veterinarian and the information regarding such a quarantine shall be provided by the veterinary practitioner to the Tamil Nadu Animal Welfare Board, in writing.
- g. All puppies shall be vaccinated which can start at the age of seven weeks and are usually completed at the age of eighteen weeks.
- h. The dogs shall be examined for phenotypic and genetic defects, including hip dysplasia, progressive retinal atrophy, night blindness, hypothyroidism, entropion, ectropion, overshot, undershot jaw (when incisors do not touch or mesh), wry mouth, two or more missing teeth, unilateral cryptorchid or full cryptorchid males. Dogs with such defects shall not be used for breeding. Biotechnological tools such as molecular test shall be done to identify genetic inherited diseases.

10. End of breeding life:

- a. Puppies that do not sell, bitches and stud dogs that are no longer

- used for breeding, shall be well maintained by breeder himself or shall be entrusted to a responsible owner/shelter.
- b. Breeding License will not be issued after the age of 8 years and the animals must be mandatorily neutered.

11. Conditions for sale:

- a. The breeder shall furnish the buyer with written details on feedings, dates of vaccination and de-worming of the puppy and health card of the puppy duly monitored and signed by a registered veterinary practitioner along with the name and address of the registered veterinary practitioner who has examined the puppy shall be recorded.
- b. Puppies will not be displayed in public places for purpose of immediate sale.

12. Records to be maintained:

- a. Breeding records, Veterinary Health and Vaccination records shall be maintained properly and should be produced at the time of Inspection.
- b. The following information of each dog will be kept:-
- i. Breed;
 - ii. Registered name and number (or litter number if not registered);
 - iii. Sex, colour and markings;
 - iv. Microchip number of both sire and dam;
 - v. Date of birth;
 - vi. Name or numbers of sire and dam;
 - vii. Name of breeder;
 - viii. Name and address of person from whom directly sourced;
 - ix. Date of acquisition;
- c. The record of dog which is bred:-
- i. Date and place of mating;

- ii. Identification number of the dog;
 - iii. Registered name and license number of dog to which mated;
 - iv. Name and address of its owner; and
- d. The record of litter should have following details:-
- i. Date of whelping;
 - ii. Number of puppies whelped by sex, colour and markings;
 - iii. Litter registration number if any;
 - iv. Microchip details of puppies;
 - v. Date of sale, gift or death of each puppy so described;
 - vi. Name and address of person acquiring each puppy so described;
 - vii. Kinds of papers and date supplied;
 - viii. Cause of death as determined by a veterinary doctor of all dogs who die in the facility;

13. Monitoring of dog breeding agencies:

- a. The TNAWB official/ local body officials/ registered veterinary practitioner nominated by Tamil Nadu Animal Welfare Board (TNAWB) shall inspect the premises/establishment for the issuance of license
- b. Periodical inspection of dogs maintained, records, premises/establishment for adherence of conditions mentioned above.
- c. The premises/establishment as and when a complaint is received.
- d. Apart from this the veterinary practitioner engaged by the breeding agency shall monitor the regular health status of the dogs and the premises regularly.
- e. Any deviation from the conditions mentioned herein shall lead to termination of license and levy of penalty.

14. Annual Report to be submitted by breeder:

- a. Each year, the licensee shall submit the annual report to Tamil Nadu

Animal Welfare Board (TNAWB).

- b. Each licensee shall submit information on the total number of dogs sold, traded, bartered, brokered, given away, boarded or exhibited during the previous year (January to December) and any other information required then and there by Tamil Nadu Animal Welfare Board (TNAWB).

15. In the Case of the Licensee Having Expired:

In the case a breeder registered dies before the expiry of the period of registration, the registration in respect of the establishment shall be deemed to have been granted to his legal heirs in respect of that establishment and shall remain in force until the end of a period of three months from the date of death of the breeder and thereafter a fresh application for registration of the breeder in respect of that establishment shall be made in accordance with this policy for continuing the establishment.

16. Identification of dogs:

Every dog must be Micro-chipped mandatorily in sequential numbers for Identification

17. GENERAL HOUSING FACILITIES: (1) Facilities to be provided by Breeders and Establishments used for Housing Breeding Dogs:

a. Suitable kennels:-

The dogs shall at all times be kept in suitable kennels/accommodation in all respects, in terms of construction space, size of the kennels, number of dogs, exercising facilities, proper temperature, lighting, ventilation and cleanliness.

b. Adequate housing:-

- (i) Adequate housing with the provision of sanitary facility, protection from the extremes of weather conditions, proper ventilation and appropriate space shall be provided.

- (ii) All housing shall be made of impervious materials that can be

sanitized and wood shall not be allowed for this purpose.

c. Indoor housing facility:-

- (i) The indoor housing facility at the establishment with environmental controls, housing or intended to house dogs shall meet the following requirements;
- (ii) It shall consist of runs and pens totally enclosed in a barn or building, or of connecting inside or outside runs and pens within a totally enclosed building;
- (iii) It shall be capable of controlling the temperature within the building or structure within the limits set forth for that species and age of dog, maintaining humidity levels and rapidly eliminating odors from within the building;
- (iv) It shall have an impervious floor;
- (v) It shall be an enclosure created by the continuous connection of a roof, floor and walls;
- (vi) It shall have at least one door for entry and exit that can be opened and closed and any windows or openings which provide natural light shall be covered with a transparent material such as glass or hard plastic;
- (vii) It is not meant for single pet parent. It is for Commercial Breeders; and

2. Structure and construction:-

- a. Housing facilities for dogs shall be structurally sound, and be kept in good repair, contain the dogs securely and restrict other dogs from entering;
- b. Areas inside of housing facilities shall be kept neat and free of clutter, including equipment, furniture and stored material, but may contain materials actually used and necessary for cleaning the area,

- and fixtures or equipment necessary for proper husbandry practices;
- c. Housing facilities shall be physically separated from any other business;
 - d. All surfaces in housing facilities and all other constructions shall be readily cleaned and sanitized, or removed or replaced when worn or soiled;
 - e. There shall be no jagged edges or sharp points that may injure the dogs;
 - f. The ceilings of indoor housing facilities shall be impervious to moisture; and
 - g. It is not meant for single pet parent. It is for Commercial Breeders;

3. Storage facilities:-

- a. Supplies of food and bedding shall be stored outside the dog area and in a manner that protects the supplies from spoilage;
- b. The supplies shall be stored off the floor and away from the walls, to allow cleaning underneath and around any supplies;
- c. Foods requiring refrigeration must be stored accordingly, and all food be stored in a manner that prevents contamination and deterioration of its nutritive value;
- d. All open supplies of food and bedding materials must be stored in leak – proof containers/bag with tightly fitting lids to prevent contamination and spoilage and only food and bedding that is currently being used may be kept in the dog areas; and
- e. It is not meant for single pet parent. It is for Commercial Breeder.

4. Drainage and waste disposal:-

- a. Regular waste disposal, removal and disposal of dog food waste, discarded bedding, debris, garbage, water, other fluids and wastes, shall be provided;

- b. Housing facilities shall be equipped with disposal facilities and drainage systems that ensure rapid elimination of dog waste and water and if closed drainage systems are used they shall be equipped with traps that prevent the backflow of gases sewage onto the floor;
- c. Standing puddles of water in dog enclosures and adjacent areas shall be drained or mopped up so that the dogs stay dry.
- d. Trash containers in housing facilities, food storage and food preparation areas shall be leak-proof and possessed of tightly fitted lids at all times.

5. Water and electricity:-

The housing facility shall have a reliable and adequate electricity supply including a backup provision in case of outage, and adequate potable running water for the dogs' drinking needs, for cleaning, and for carrying out other husbandry requirements.

6. Ambient and comfortable temperature:-

- a. The temperature within indoor housing facilities for dogs shall be ambient and comfortable, depending on the breeds of dogs that are housed inside; and
- b. The ambient temperature shall be provided for their health and well- being.

7. Ventilation:-

- a. Adequate ventilation at indoor housing facilities containing dogs shall be ensured by means of windows, doors, vents or air conditioning.
- b. The air shall be circulated by fans, blowers or air conditioning so as to minimize drafts, odors and moisture condensation.

8. Lighting:-

- a. Indoor housing facilities for dogs shall be well-lit enough to permit

routine inspection, cleaning of the facility and observation of the dogs.

- b. Primary enclosures shall be placed so as to protect the dogs from excessive light.

9. Chemicals:-

- a) Chemicals used for normal husbandry practices, cleaning, disinfecting, and the like, that may be toxic to the dogs shall not be stored in food storage or food preparation areas, but may be stored in adjacent rooms or in separate cabinets.
- b) All chemicals shall be clearly labeled.

10. Medicine:-

- a) All medication shall be stored in clean, dust restricting cabinets with well-fitting doors or other suitable containers with well-fitting lids.
- b) All medication shall be clearly marked, or labeled.
- c) Manufacturers' labels, including expiring date, shall not be removed or defaced.
- d) Medication such as dips, and rinses and those marked for external use only may be stored in the same cabinet but shall be physically separated from other medication.

11. Fire detection and extinguishers:

All indoor housing facilities and the indoor portion of sheltered housing facilities shall be equipped with properly maintained smoke or heat detection devices and extinguishers.

12. Outdoor housing facilities:-

- a) The following categories of dogs shall not be kept in outdoor facilities:
 - i. Dogs that are not accustomed to the temperatures prevalent in the area or region in question;

- ii. Dog breeds that cannot tolerate the temperatures prevalent in the area or region in question, such as long-haired breeds in high temperature locations; and
 - iii. Sick, infirm, aged or young dogs.
- b) Outdoor facilities for dogs shall include one or more structures with roofs, i.e., one or more shelters that are accessible to each dog in each outdoor facility, and that are large enough to allow each dog within the structure to sit, stand and lie down in a normal manner, and to turn about freely and in addition, one or more separate outside areas of shade shall be provided, large enough to contain all the dogs at once and protect them from the direct rays of the sun. For the dogs used for breeding sufficient space is required for the dog to move, confining the dog within a limited space cannot be permitted.
- c) Shelters in outdoor facilities for dogs shall contain a roof, four sides and a floor, and shall—
 - i. Provide the dogs with adequate protection and shelter from heat and cold; and
 - ii. Provide the dogs with protection from the direct rays of the sun and the direct effect of wind, rain, snow or other precipitation.
- d) Primary enclosures for dogs shall meet the following minimum requirements:—
 - i. Primary enclosures shall be constructed of suitable material and shall be structurally sound;
 - ii. They shall be kept in good repair;
 - iii. They shall have no sharp points or edges that can injure the dogs;
 - iv. They shall be such as contain the dogs securely, and keep other dogs from entering the enclosure;
 - v. Enable the dogs to remain dry and clean;
 - vi. Provide shelter and protection from extreme temperatures and

- weather conditions that may be uncomfortable for or hazardous to the dogs;
- vii. Provide sufficient shade to shelter all the dogs housed in the primary enclosure at one time;
 - viii. Provide all the dogs with easy and convenient access to clean food and water;
 - ix. Enable all surfaces that come in contact with the dogs to be readily cleaned and sanitised, or replaced when worn or soiled;
 - x. Have floors that are constructed in a manner that protects the dog's feet and legs from injury; and
 - xi. Provide sufficient space to allow each dog to turn about freely, to stand, sit and lie down in a comfortable, normal position, and to walk in a normal manner.
- e) Each dog housed in a primary enclosure (including weaned puppies) shall be provided a minimum amount of floor space, calculated as follows:—
- i. Length of the enclosure: four times the length of the dog, measured from the tip of its nose to the base of its tail; and
 - ii. Breadth of the enclosure: two times the length of the dog, measured from the tip of its nose to the base of its tail. For the dogs used for breeding sufficient space is required for the dog to move, confining the dog with limited space cannot be permitted.
- f) Each female dog with nursing puppies shall be provided with an additional amount of floor space, based on her breed and behavioral characteristics, and in accordance with generally accepted husbandry practices as determined by the attending veterinarian.
- g) The interior height of a primary enclosure shall be at least six inches higher than the head of the tallest dog in the enclosure when it is in a normal standing position.

- h) Cages or crates used to contain dogs for short periods of time shall be large enough to permit the dog to stand, sit, lie and turn around in a normal manner.
- i) Dogs shall not be caged except at night when the caregiver retires, or when necessary for medical reasons.
- j) It is not meant for single pet parent. It is for Commercial Breeders.

13. Dogs on tethers:-

- a) Dogs may be kept on tethers only in outside housing
- b) The length of the tether shall be at least three times the length of the dog, as measured from the tip of its nose to the base of its tail.
- c) The tether shall allow the dog convenient access to the shelter structure, and to food and water containers.
- d) The tether shall be of the type and strength commonly used for the size of dog involved, and shall be attached to the dog by a well-fitted collar that does not cause trauma or injury to the dog.
- e) Collars made of materials such as wire, flat chains, or chains with sharp edges, or chains with rusty or non-uniform links are prohibited.
- f) The tether shall be attached such that the dog is not in danger of becoming entangled with other objects or coming into physical contact with other dogs in the outside housing facility, and such that the dog is able to roam to the full range of the tether.
- g) A perimeter fence that is of sufficient height to keep unwanted dogs out shall enclose the dog housing area where dogs are on tethers.
- h) The fence shall be constructed such that it protects the dogs by preventing other dogs coming into contact with the dogs inside.

14. Compatibility:-

- a) All dogs housed in the same primary enclosure shall be compatible, as determined by observation.
- b) Not more than 10 adult dogs shall be housed in the same primary enclosure.
- c) Female dogs in heat shall not be housed in the same primary enclosure with sexually matured males, except for breeding.
- d) Female dogs with litters shall be housed separately and shall not be housed in the same primary enclosure with other adult dogs; puppies less than four months of age shall not be housed in the same primary enclosure with adult dogs other than their dam or foster dam.
- e) Dogs with a vicious or aggressive tendency shall be housed separately from other dogs and sedation shall not be used to control behavior of such dogs.
- f) Dogs that have or are suspected of having a contagious disease shall be isolated from healthy dogs.
- g) When an entire group or room of dogs is known to have or believed to be exposed to an infectious or contagious agent, the group may be kept intact during the process of diagnosis, treatment and control.

15. Exercise for dogs and socializing:-

- a) The Dog Breeding Units, commercial kennels, commercial breeders, traders, other dealers, and exhibitors shall develop, document and follow an appropriate plan to provide dogs with an opportunity for exercise
- b) The plan shall be approved and signed by the attending veterinarian, which includes written standard procedures to be followed in providing the opportunity for exercise.
- c) The plan shall also be made available to the Tamil Nadu Animal Welfare Board upon request.

- d) The plan shall, at a minimum, comply with each of the following, the frequency, method and duration of the opportunity for exercise shall be determined by the consultant veterinary practitioner.
- e) The breeders, in developing their plan, shall consider providing positive physical contact with humans that encourages exercise through play or other similar activities and if a dog is housed, held or maintained at a facility without sensory contact with another dog, it shall be provided with positive physical contact with humans at least once daily.
- f) The opportunity for exercise shall be provided by:-
 - i. Group housing with pens and runs that provide at least one hundred percent of the required space for each dog if maintained separately under the minimum floor space requirements as mentioned.
 - ii. Providing access to a run or open area at the frequency and duration prescribed by the attending veterinarian.
 - iii. Adequate exercise either in a fenced area or on a leash with a person on the other end.
 - iv. Exercising for at least thirty minutes twice per day.
 - v. Socializing with people at suitable intervals equaling at least three hours per day for adult and five hours per day for puppies less than four months of age; and Every establishment shall ensure that sufficient physical exercises provided to the dog used for breeding purpose.

The facilities required for exercise shall be developed by the breeder involved.

16. Feeding:-

- a. Dogs shall be fed as per prescribed standards.

- b. The food shall be wholesome, palatable and of sufficient quantity and nutritive value to maintain the normal condition and weight of the dog.
- c. The diet shall be appropriate for the individual dog's age and condition.
- d. Food receptacles used for dogs shall be readily accessible to all dogs and shall be located so as to minimize contamination by excreta and be protected from the rain and feeding pans shall be made of a durable material that can easily be cleaned and sanitized and shall be kept clean.

17. Cleaning, sanitization and housekeeping:-

- a. Excreta and food waste shall be removed from primary enclosures
- b. Daily, and from under primary enclosures as often as necessary, to prevent an excessive accumulation of feces and food waste, to prevent soiling of the dogs contained in the primary enclosures, and to reduce disease hazards, insects and odors.
- c. When water is used to clean the primary enclosure, whether by hosing, flushing or other methods, dogs shall be removed unless the enclosure is large enough to ensure that the dogs will not be harmed, wetted or distressed in the process.
- d. Stagnation of water shall be removed from the primary enclosure and adjacent areas.
- e. Dogs in other primary enclosures shall be protected from being contaminated with water and other wastes during the cleaning.
- f. Hard surfaces of primary enclosures and food and water receptacles shall be cleaned and sanitized, by washing them with appropriate detergent solutions and application of disinfectants.
- g. Pens, runs and outdoor housing areas using material that cannot be cleaned and sanitized using the method previously stated, such

as gravel, sand, grass, earth or absorbent bedding, shall be cleaned and sanitized by removing the contaminated material as necessary to prevent odors, disease hazards, and insects.

- h. Hard surfaces with which the dogs come in contact shall be spot-cleaned daily and sanitized.
- i. There shall be no accumulation of excreta, and floors made of sand, gravel, grass or other similar material shall be raked or spot-cleaned with sufficient frequency to ensure all dogs the freedom to avoid contact with excreta.

18. Housekeeping for premises:-

The establishment, where housing facilities are located, including buildings and surrounding grounds, shall be kept clean and in good repair, and free of accumulations of trash, junk, waste products and discarded matter, and weeds, grasses and bushes shall be controlled so as to facilitate cleaning of the establishment, control and prevent fleas and ticks, and protect the health and well-being of the dogs and regular de-ticking shall be practiced at the time of grooming.

19. Annual vaccination of dogs:-

The dogs at every breeding establishment shall be annually vaccinated against rabies and against canine distemper, parvovirus, leptospirosis and viral hepatitis. It is mandate that dogs used for breeding purpose should be regularly vaccinated as per vaccination schedule. Health card should be maintained duly signed by the Registered Veterinary Practitioner.

20. Employees:-

- a. Every breeder shall have enough employees to carry out the level of husbandry practices and care required by these rules.
- b. Licensed breeder shall keep 10 dogs per employee at any one time.

- c. The employees who provide for husbandry and care or handle dogs shall be properly trained, and supervised by an individual who has the requisite degree of knowledge, background and experience in proper husbandry and care of dogs to be able to do so. Though in some instances the dogs are cared by families, they must possess/gain knowledge on do's and don'ts.
- d. All the employees should be vaccinated against rabies annually.

18. Euthanasia:

Dogs shall not be euthanised just because they can no longer breed or cannot be sold or not commercially viable. Euthanasia of mortally wounded or injured dogs or incurably sick or terminally ill dogs shall be accomplished by a registered veterinary practitioner and the records including post mortem report shall be maintained for all dogs euthanised, and all carcasses including those that naturally died must be incinerated and shall not be sold.

K.GOPAL
ADDITIONAL CHIEF SECRETARY TO GOVERNMENT

// True Copy //

T. J. Kumar
27/9/2024
SECTION OFFICER
DP
27/9/2024